

2010 01 04

LAKEWOOD CITY COUNCIL MINUTES

Monday, January 4, 2010
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:01 p.m.

SWEARING-IN CEREMONY

Chief Justice Barbara Madsen conducted the Oath of Office and swearing-in of Mary Moss, Mike Brandstetter, Douglas Richardson and Jason Whalen to the office of Lakewood City Councilmember.

ROLL CALL

Councilmembers Present: 7 ? Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Jason Whalen, Walter Neary and Claudia Thomas.

FLAG SALUTE

The Pledge of Allegiance was led by Mayor Richardson.

NOMINATION AND ELECTION OF MAYOR AND DEPUTY MAYOR

MAYOR RICHARDSON opened the floor for nominations for the position of mayor.

Councilmember anderson NOMINATED douglas richardson as mayor.

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There being no other nominations, the nominations for Mayor was declared closed.

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VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY TO ELECT DOUGLAS RICHARDSON AS MAYOR.

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MAYOR RICHARDSON OPENED THE FLOOR FOR NOMINATIONS FOR THE POSITION OF DEPUTY MAYOR.

Councilmember THOMAS NOMINATED DON ANDERSON AS Deputy mayor.

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There being no other nominations, the nominations for Deputy Mayor was declared closed.

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VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY TO ELECT DON ANDERSON AS DEPUTY MAYOR.

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Council recessed at 7:11 p.m. and reconvened at 7:21 p.m.

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REPORTS BY THE CITY MANAGER

City Manager Neiditz welcomed new Councilmembers Moss, Brandstetter and Whalen and Mayor Richardson to the Council.

City Manager Neiditz commented on the memorial planning for a fallen Pierce County Deputy.

City Manager Neiditz then reported on the security improvements at Western State Hospital and the Washington State Department of Corrections relative to patients that are transferred from Eastern State Mental Hospital.

City Manager Neiditz commented on the news article about public disclosure requests and the City's support for proposed legislative

changes to enable cost recovery for excessive requests and to provide for a more speedy process.

City Manager Neiditz reminded the Councilmembers of a Joint Council and 28th and 29th District Legislators meeting on January 5, 2010, at 7:30 a.m.

City Manager Neiditz then reported that the bid opening on Phase 2 of the Tillicum sewer project will be at 2:00 p.m. on January 5, 2010 and if the bids are successful, a special meeting of the Council will be requested for January 11, 2010.

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PROCLAMATIONS AND PRESENTATIONS

Youth Council Report.

The Youth Council spoke about the Youth Council gift exchange and the upcoming celebration of the Martin Luther King Jr. event on January 16, 2010. The Youth Council then reported on activities at the high schools.

Proclamation declaring January 2010 as National Mentoring Month.

Councilmember Whalen presented a proclamation declaring January 2010 as National Mentoring Month to Ms. Gloria Morehouse, Chairperson of the Caring Adult Task Force, Lakewood's Promise; and Mr. Dave O'Keefe, Executive Director of the Communities in Schools of Lakewood.

Proclamation declaring January 18, 2010 as the 24th Anniversary of Martin Luther King, Jr. Day of Service and February 2010 as Black History Month.

Mayor Richardson presented a proclamation declaring January 18, 2010 as the 24th Anniversary of Martin Luther King, Jr. Day of Service and February 2010 as Black History Month to Ms. JoEthel Smith, Founder and Member, and Ms. Sharbra Gordon-Scott, Member of the Martin Luther King Jr. Committee.

Clover Park School District Board Report.

Clover Park School District (CPSD) Vice President Walt Kelcy reported on the Clover Park School District construction bond scheduled before Lakewood voters on February 9, 2010. He expressed appreciation for Mayor Richardson's work on the Citizens Committee to support the bond.

Mr. Kelcy thanked the Lakewood Police Department for providing 140 Dower Elementary families with meal bags for the holidays.

Mr. Kelcy then announced that Dr. Marty Schafer is now President of the CPSD Board, Mr. Walt Kelcy is Vice President and Mr. Paul Wagemann is the Board's Legislative representative.

PUBLIC COMMENTS

Speaking before the Council were:

Dennis Haugen, Lakewood resident, welcomed the new Councilmembers.

He spoke about expended City funds and accountability of City management.

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Kurt Sample, Lakewood resident, Lakewood Computer House and Lakewood's Promise Coordinator, spoke about the value of mentors and caring adults.

Glen Spieth, Lakewood resident, congratulated the new Councilmembers. He expressed concern about the City's character assassination of a citizen in the audience requesting public records.

Matt Sygny, spoke about Congo Carter who was found not guilty by the jury of the Municipal Court.

Denise Jefferson, Lakewood resident, welcomed the new Councilmembers and recognized the Lakewood Police Department. She then spoke about the loss of a Pierce County Deputy. She requested that Morris Quimby be removed from the Public Safety Advisory Committee.

Congo Carter, Lakewood resident, requested that Morris Quimby be removed from the Public Safety Advisory Committee for pulling a gun on him. He then read a statement from THE NEWS TRIBUNE article indicating that the Mayor will take action on this matter after the trial.

Diane Formoso, Caring for Kids, invited the Council to the Caring for Kids major fundraiser on February 20, 2010.

Paul Wagemann, Lakewood resident, welcomed the new Councilmembers and challenged the Council to think about Lakewood's vision five years from now and if Lakewood will have casinos and diversity. He commented about public disclosure requests and how it appears that the City is not being transparent, and asked the Council to make government open.

David Anderson, Lakewood resident, congratulated the new Councilmembers and spoke about leadership clarity and values.

Ken Severe, Lakewood resident, spoke about an article by the City Attorney alluding to the non-transparency of government as it relates to public disclosure.

C O N S E N T A G E N D A

A. Approval of the minutes of the City Council meeting of December 7, 2009.

B. Approval of the minutes of the City Council Special Meeting of December 14, 2009.

C. Approval of payroll check numbers 210, 111735 to 111763 and direct deposit check numbers 37583 to 37836, in the amount of \$1,148,648.73 for the period November 16-30, 2009.

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D. Approval of payroll check numbers 211, 111764 to 111793 and direct deposit check numbers 37837 to 38088, in the amount of \$1,108,122.86 for the period December 1-15, 2009.

E. Approval of claim voucher numbers 54091 to 54206, in the amount of \$410,014.46 for the period ending December 3, 2009.

F. Approval of claim voucher numbers 54207 to 54268, in the amount of \$81,932.09 for the period ending December 10, 2009.

G. Approval of claim voucher numbers 54269 to 54407, in the amount of \$1,385,399.92 for the period ending December 17, 2009.

H. Approval of claim voucher numbers 54408 to 54511, in the amount of \$487,372.08 for the period ending December 24, 2009.

I. Items Filed in the Office of the City Clerk:

1. Lakewood Arts Commission meeting minutes of November 2, 2009.

COUNCILMEMBER NEARY MOVED TO ADOPT THE CONSENT AGENDA AS PRESENTED. SECONDED BY deputy mayor anderson. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

R E G U L A R A G E N D A

RESOLUTIONS

Resolution No. 2010-01 expressing support for the Clover Park School District construction bond proposition coming before voters on February 9, 2010.

COUNCILMEMBER WHALEN MOVED TO ADOPT RESOLUTION NO. 2010-01. SECONDED BY COUNCILMEMBER MOSS. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

Resolution No. 2010-02 designating the color blue as the official color for holiday lights in the residential and business community of the city and to recognize and memorialize public safety officers lost in the line of duty.

COUNCILMEMBER NEARY MOVED TO ADOPT RESOLUTION NO. 2010-02. SECONDED BY COUNCILMEMBER WHALEN. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

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UNFINISHED BUSINESS

None.

NEW BUSINESS

Motion No. 2010-01 electing Puyallup Councilmember Tami Brouillet to serve as the Position 2 representative on the Zoo/Trek Authority Board to represent 22 small cities and towns within the Pierce County Regional Council boundary for a three-year term.

COUNCILMEMBER thomas MOVED TO ELECT PUYALLUP COUNCILMEMBER TAMI BROUILLET TO SERVE AS THE POSITION 2 REPRESENTATIVE ON THE ZOO/TREK AUTHORITY BOARD TO REPRESENT 22 SMALL CITIES AND TOWNS WITHIN THE PIERCE COUNTY REGIONAL COUNCIL BOUNDARY FOR A THREE-YEAR TERM. SECONDED BY COUNCILMEMBER moss. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

Motion No. 2010-02 authorizing the City Manager to execute an agreement with Woodland Industries GC, Inc., in the amount of \$66,071.23 plus tax, for the demolition and abatement of multiple structures at the Fir Acres Mobile Home Park located at 12623 Bridgeport Way SW.

COUNCILMEMBER moss MOVED to authorize the city manager to execute an agreement with woodland industries gc, inc., in the amount of \$66,071.23 plus tax, for the demolition and abatement of multiple structures at the fir acres mobile home park located at 12623 bridgeport way sw. SECONDED BY COUNCILMEMBER neary. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

Motion No. 2010-03 authorizing the execution of a grant agreement with the Washington State Department of Commerce, in the amount of \$95,000 for the STOP Domestic Violence Against Women program.

COUNCILMEMBER thomas MOVED to authorize the city manager to execute a GRANT AGREEMENT WITH THE WASHINGTON STATE DEPARTMENT OF COMMERCE, IN THE AMOUNT OF \$95,000, FOR THE STOP DOMESTIC VIOLENCE AGAINST WOMEN PROGRAM. SECONDED BY COUNCILMEMBER brandstetter. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

BRIEFING BY THE CITY MANAGER

City Manager Neiditz distributed copies of a draft agenda for the Council's Retreat of January 8 and 9, 2010 to be facilitated by consultant Michael Pendleton.

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Councilmember Brandstetter asked if the January 9, 2010 retreat could start earlier in order for Councilmembers to attend a Korean event at the McGavick Center beginning at noon. Councilmember Thomas suggested moving some items on Saturday's agenda to Friday from 4:30 p.m. to 6:30 p.m.

City Manager Neiditz reported that changes on the third floor and first floor at City Hall are occurring due to budget changes.

CITY COUNCIL COMMENTS

Councilmember Neary welcomed the new Councilmembers. He then reported on the Lakewood Arts Commission meeting he attended. He indicated that the Arts Commission is interested in participating in the Police memorial when that project is ready.

Councilmember Neary noted that he will be working with the Assistant City Attorney of Everett on a web seminar about blogs, twitters and social media relative to the Public Records Act. He then indicated that he will be participating in a conference about the Open Meetings Act.

Councilmember Brandstetter complimented City staff for notifying the human services coalition to assist families that were affected by an apartment fire.

Deputy Mayor Anderson commented on a Police ride-a-long that he participated in and encouraged new Councilmembers to go on a ride-a-long.

ADJOURNMENT

There being no further business, the meeting adjourned at 9:10 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC

CITY CLERK